



# CM/ECF Electronic Filing Guide

U.S. Bankruptcy Court, District of Colorado

This guide is designed to assist you with electronic document filing via CM/ECF. E-filers should not rely on this Guide exclusively. Please always consult the Bankruptcy Code, Federal Rules of Practice, and this Court's Local Bankruptcy Rules.

## Court Location & Contact Information

|                      |                                                                                                                                                                                   |
|----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Location & Address   | U.S. Custom House<br>U.S. Bankruptcy Court<br>721 19th St.<br>Denver, CO 80202                                                                                                    |
| Hours of Operation   | Monday through Friday, excluding holidays<br>Phone, Live Support: 8:00 a.m. – 5:00 p.m.<br>Intake and Records: 8:00 a.m. – 4:30 p.m.<br>Drop Box: 6:30 a.m. – 6:00 p.m.           |
| Website & Live Chat  | <a href="https://www.cob.uscourts.gov/">https://www.cob.uscourts.gov/</a>                                                                                                         |
| Phone Number         | 720-904-7300                                                                                                                                                                      |
| CM/ECF Help Desk     | 720-904-7450 or <a href="mailto:Training@cob.uscourts.gov">Training@cob.uscourts.gov</a>                                                                                          |
| Case Questions       | 720-904-7480                                                                                                                                                                      |
| Finance              | 720-904-7441                                                                                                                                                                      |
| Records              | 720-904-7480                                                                                                                                                                      |
| Administration       | 720-904-7303                                                                                                                                                                      |
| Judges' Chambers     | <a href="http://www.cob.uscourts.gov/judges-info">www.cob.uscourts.gov/judges-info</a> .                                                                                          |
| U.S. Trustee Program | 303-312-7230<br><br><a href="https://www.justice.gov/ust/ust-regions-r19/region-19-district-colorado">https://www.justice.gov/ust/ust-regions-r19/region-19-district-colorado</a> |
| Chapter 7 Trustees   | <a href="https://www.justice.gov/ust/list-chapter-7-panel-trustees#CO">https://www.justice.gov/ust/list-chapter-7-panel-trustees#CO</a>                                           |
| Chapter 13 Trustees  | <a href="https://www.justice.gov/ust/list-chapter-13-standing-trustees#CO">https://www.justice.gov/ust/list-chapter-13-standing-trustees#CO</a>                                   |

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# Need Help Fast?

## Do you have a question or make an e-filing mistake?

The CM/ECF Help Desk is available during business hours. Please call 720-904-7450 or email [training@cob.uscourts.gov](mailto:training@cob.uscourts.gov) or if you have a question or a problem. Please include the case number and a brief description of the problem in your message.

## Did you forget to e-file a proposed order?

Proposed orders can't be filed on their own. To add your proposed order to your filing after the fact, please email the missing proposed order in .pdf format to [cob\\_proposedorders@cob.uscourts.gov](mailto:cob_proposedorders@cob.uscourts.gov). Please include the case number and assigned judge's initials in the subject line.

## Did you e-file the wrong document?

Court staff are not permitted to “swap” documents after they are filed on the Court’s docket. Please re-file the correct document, then contact us to make a note on the court’s record. If the incorrect document contains personal/restricted information, you must file a Motion to Redact and pay the associated fee.

## Did you accidentally e-file a duplicate case?

Attorneys: If you accidentally e-file a new case twice, you must contact the Clerk’s Office the same day by email at [training@cob.uscourts.gov](mailto:training@cob.uscourts.gov) or by phone at 720-904-7450. If you contact the Court the same day the duplicate case was filed, the Clerk’s Office may be able to administratively close the duplicate case. If the Court is closed, please provide as much information as possible in your message. If you fail to contact the Court the same day, you must pay for filing fees for both cases and file a motion to dismiss in the duplicate case. You must also serve the motion to dismiss on the Trustee, U.S. Trustee, and Debtor(s). If the motion to dismiss is filed more than three days after the duplicate case filing, you must serve the motion on all parties per L.B.R. 9013-1.

# The Basics

Attorneys and other filers can submit files to the court electronically using the federal courts' Case Management/Electronic Case Files (CM/ECF) system.

## CM/ECF

Case Management/Electronic Case Files (CM/ECF) is the federal Judiciary's system that allows case documents, such as pleadings, motions, and petitions, to be filed with the court online.

## PACER

The Public Access to Court Electronic Records (PACER) service provides electronic public access to federal court records. Registered users can [search for a case](#) in the federal court where the case was filed, or [search a nationwide index](#) of federal court cases. The PACER Service Center is available 6 a.m. and 5 p.m., Monday through Friday at 1-800-676-6856 or [pacer@psc.uscourts.gov](mailto:pacer@psc.uscourts.gov).

## Accessing CM/ECF

CM/ECF features central sign-on functionality that gives users access to both PACER and electronic filing from a single account. Filing a document in CM/ECF requires a PACER account and special access issued by an individual court. Learn how to [register for an account](#).

## System & Equipment Requirements

All e-filers must possess a computer (not just a phone) with access to the internet, a recent version of a web browser, and software that allows you to read and create .pdf files. All e-filings must be in .pdf format and must be smaller than 60mb. CM/ECF works best with Google Chrome or Mozilla Firefox.

The Clerk's Office cannot provide IT support for issues related to your computer, internet provider or connectivity, or browser, or third-party bankruptcy petition software or filing programs.

# E-Filing Policies and Practices

## E-filing Accounts

All e-filing accounts are managed through <https://pacer.uscourts.gov>. You cannot e-file without a PACER account.

## Mandatory E-Filing for Attorneys

Under L.B.R. 5005-4, all attorneys and trustees must e-file all documents via CM/ECF.

## Logins and Signatures

Your e-filing account is equivalent to your signature. All e-filed documents must bear an electronic signature, and that signature must match the e-filing account used to file it. No exceptions.

## Updating Account Information/Changing Your Address

The Court does not have access to your account information. You must update and manage your account through PACER at <https://pacer.uscourts.gov>.

## Fees

All fees are due at the time of filing. If you fail to pay a fee the same day, your e-filing account will be locked. You must pay all fees in full to begin e-filing again.

## Out of State Attorneys

Under L.B.R. 9010-1, all attorneys who wish to practice before this Court must be registered and in good standing with the U.S. District Court for the District of Colorado. The District Court does not allow pro hac vice admissions – full membership is required. For more information, please visit <http://www.cod.uscourts.gov/AttorneyInformation/GeneralAttorneyInformation.aspx>.

## Emergency Filings

If you have a true emergency filing, you must provide advance notice to the Clerk's Office or relevant Chambers.

## E-Filing Exclusions

Certain documents must be filed in hard copy including new Chapter 9 cases and miscellaneous proceedings. Please contact the Clerk's Office for assistance.

Non-attorney e-filers are limited to e-filing in existing cases only.

## Proofs of Claim

Creditors don't need to register for e-filing to e-file proofs of claim. Instead, go to <https://www.cob.uscourts.gov/proof-claim>.

# Protecting Private Information

## Personal Information in Filings

Under F.R.B.P. 9037, L.B.R. 9037-1, and the privacy policy of the Judicial Conference of the United States, certain personal identifiers must be redacted from filings for privacy. This applies to all documents, attachments, and exhibits filed with the Court, whether e-filed or paper-filed. E-filers must take care to ensure redactions are applied correctly to electronic documents – this includes removing metadata and flattening all .pdf documents before e-filing them. It is the responsibility of the filing party, not the Clerk’s Office, to ensure compliance with this policy. Personal identifiers include the following:

- **Social Security Numbers.** The only form that requires a full unredacted Social Security Number is the Statement About Your Social Security Number form. This form is not a part of the public case record. For all other filings, you must limit the Social Security Number to the last four digits: XX-XXX-1234.
- **Financial Account Numbers.** You must limit all financial account numbers to the last four digits.
- **Dates of Birth.** You must limit all dates of birth to the year only.
- **Names of Minor Children.** You must reference minor children by their initials, not their names.

## Redacting Information

If you realize you e-filed a document that contains sensitive information, you must e-file a Motion to Redact and pay the associated filing fee.

## Filing Documents Under Seal

Documents filed under seal are not available to the public, though a court order could later unseal the document. First, e-file the sensitive document using Miscellaneous → Sealed Document. Then, e-file the motion using Motions/Apps/Stips → Seal/Restrict Public Access.

## Highly Sensitive Documents (“HSDs”)

If you intend to file a document that might be considered highly sensitive or may require additional security, you must first contact the Clerk’s Office. HSDs include documents relating to matters of national security, foreign sovereign interests, cybersecurity, protected intellectual property or trade secrets, or those involving the reputational interests of the United States. HSDs do not include bank records, Social Security records, health records, writs, settlement agreements, or valuation reports.

# E-Filing Tips: New Cases (Attorney E-filers Only)

## Basic Requirements for Filing a New Case

The Clerk's Office strongly encourages attorney e-filers to file complete cases. If you must file an incomplete case, you must include the following, at a minimum: 1) Voluntary Petition (Form B101 or B201); 2) Statement Regarding Social Security Number (Form B121); and 3) List of Creditors. These documents ensure the Clerk's Office can process the case quickly and mail the Notice of Bankruptcy Case, Meeting of Creditors, & Notice of Trustee to the case creditors.

## Case Opening Documents that Must be E-filed Separately

The following documents must e-filed separately from the Voluntary Petition using their unique e-filing events:

- Application to Pay Filing Fee in Installments (Form B103A)
- Application to Waive Filing Fee (Form B103B)
- Chapter 7 Statement of Intention (Form B108)
- Chapter 7 Statement of Current Monthly Income (Form B122A-1)
- Chapter 7 Means Test (Form B122A-2)
- Chapter 11 List of Twenty Largest Creditors (Form B104 or B204)
- Chapter 11 Statement of Current Monthly Income (Form B122B)
- Chapter 13 Plan (Form LBF 3015-1.1)
- Chapter 13 Statement of Current Monthly Income (Form B122C-1)
- Chapter 13 Calculation of Disposable Income (Form B122C-2)
- Disclosure of Compensation of Attorney for Debtor (Form B 2030)
- Statement Regarding Social Security Number (Form B121)
- Tax Documents

## List of Creditors (Creditor Mailing Matrix)

Creditor lists must be saved as a text file (txt format) and addresses must be listed in the following format:

Brick & Morter Bank  
123 Bank St.  
Denver, CO 80202

To add creditors to a new case, go to Creditor Maintenance → Upload list of creditors file, and follow the prompts.

## E-Filing Tips: New Adversary Proceedings (Attorney E-filers Only)

**Plaintiff's Attorney:** You must be sure to add yourself as the plaintiff's attorney when you e-file a new adversary proceeding; otherwise, your client will show as pro se on the summons. To do this, enter the plaintiff's information then click "Add Attorney."

**Demand Amount:** You will be prompted to enter a demand amount when you e-file a new adversary proceeding. When prompted, round the demand figure to the nearest \$1000. For example, if the demand is \$10,400, enter "10" into the amount field.

**Defendant's Attorney:** Leave the defendant's attorney blank when e-file a new adversary proceeding. Even if a defendant has an attorney in the underlying bankruptcy, the Court does not consider the defendant represented until an attorney e-files an answer.

## E-Filing Tips: Amending Information

### Amending a Statement of Social Security Number, L.B.R. 1007-5

To amend or correct a Social Security Number, go to Miscellaneous → Social Security Number. Be sure to select the modifier "Amended" in the event. Once you have e-filed the amended form, you must e-file a separate Certificate of Service at Miscellaneous → Certificate of Service. Please refer to L.B.R. 1007-5 for specifics and be sure to include both the original and corrected numbers.

### Amendments to Petitions, Schedules, Lists, Statements, L.B.R. 1009-1

L.B.R. 1009-1 provides the requirements for amending and serving petitions, schedules, lists, and statements. The process generally involves the following steps:

- E-file a complete copy of the amended document.
- E-file a Notice of Amendment to Schedule (L.B.F. 1009-1.1) using Miscellaneous → 1009-1.1 Notice of Amendment to Voluntary Petition, Lists, Schedules, or Statements.
- Pay the filing fee when prompted.
- E-file a Certificate of Service (L.B.F. 9013-1.2) that shows service of the Notice of Bankruptcy Case, Meeting of Creditors, & Notice of Trustee, along with Notices of Possible Dividends and Notices of Proof of Claim Bar Dates, and the Proof of Claim form using Miscellaneous → Certificate of Service.
- Add new creditors to the case's creditors list using Creditor Maintenance → Upload list of creditors file.

## E-Filing Tips: Making Payments

CM/ECF is designed to allow e-filers to pay filing fees as part of the e-filing process. When you complete an e-filing that requires a filing fee, you will be prompted to make a payment. You may opt to pay right away, or continue e-filing and pay later. Filing fees must be paid the same day.

### Making Installment Payments

If the Court grants an application to pay the filing fee in installments, you must pay the fee via CM/ECF. Go to Miscellaneous → Payment of Installment Fee, then select the correct chapter and payment type. If you are making the final payment, be sure to select final payment event. It is your responsibility to know how much is due and when payments are due.

### Making Payments Later

If you would like to make a payment later, login to CM/ECF, then go to Reports → Payments Due → Pay Now. Then enter your payment information, authorize the charge, and submit the payment. Please do not double-click the Submit Payment button as this may result in duplicate charges.

### Lockouts

If you do not pay required fees by the end of the day, your e-filing account will be locked. To unlock your account, login to CM/ECF, then go to Utilities → Payments Due → Pay Now. Then enter your payment information, authorize the charge, and submit the payment. Please do not double-click the Submit Payment button as this may result in duplicate charges.

### Payment Errors

If you make a payment error and either overpay or underpay, please contact the Finance Department immediately at 720-904-7441. If you fail to pay a filing fee on the same day you file a document, your e-filer account will be locked and remain locked until you pay the filing fee.

## E-Filing Tips: Service and Notice

### Mailing Lists for Certificates of Service

Under L.B.R. 5005-4(a), e-filing registration constitutes consent to receive service and notice electronically via CM/ECF. E-filers can access names and email addresses for all parties. Login to CM/ECF, then go to Utilities → Miscellaneous → Mailings → Mailing Info for a Case. Then, enter the relevant case number and click Submit. CM/ECF will then provide an electronic mail noticing list for parties in the case. Go to the bottom of the list to access a complete list of all creditors and parties in the case in your choice of formats (3-column .pdf or raw data.)

### Approved Bankruptcy Notice Providers

The Judiciary maintains a list of approved bankruptcy notice providers at <https://www.uscourts.gov/court-programs/bankruptcy/bankruptcy-noticing/approved-bankruptcy-notice-providers>. If you use an approved provider vendor for mailings, the Clerk's Office suggests the following language:

I hereby certify that on this [date], a true and correct copy of [document(s)] were electronically filed with the Court using the CM/ECF system, which sent notification to all parties of interest participating in the CM/ECF system, and forwarded to [Notice.Provider], an approved bankruptcy notice provider for deposit in the U.S. Mail, first class, postage prepaid and properly addressed to the parties' and/or counsel's addresses on the mailing list generated by CM/ECF. A separate certificate of service will be filed by [Notice.Provider].

### L.B.R. 2002-1. Notice to Creditors and Other Interested Parties

E-filers should be mindful of the distinction between notice (as required for parties and described by F.R.B.P. 2002 and L.B.R. 2002-1) and service (as required for parties against whom relief is sought and as described in F.R.B.P. 7004, 9013, and 9014, and L.B.R. 9013-1). Parties seeking expedited hearings on motions brought immediately after the filing of a Chapter 11 petition should refer to L.B.R. 2081-1.